



## CHAPTER 4.

An Act to amend section one of the Trade Facilities Act, 1921, and the Overseas Trade Acts, 1920 and 1921, and to authorise the Treasury to guarantee certain loans to be raised by the Government of the Federal Republic of Austria and the Government of the Soudan respectively.

A.D. 1922.

[15th December 1922.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.--(1) The maximum limit on the aggregate capital amount of the loans the principal or interest of which may be guaranteed under subsection (1) of section one of the Trade Facilities Act, 1921, shall be increased from twenty-five million pounds to fifty million pounds.

Amendment  
of s. 1 of  
11 & 12  
Geo. 5. c. 65.

(2) The period within which guarantees may be given under the said section one as amended by this section shall be extended by one year, and accordingly for the words "the year" in subsection (5) of the said section one there shall be substituted the words "each year."

(3) For the purpose of meeting the costs and expenses incurred by the Treasury in administering the said section one, there shall be charged in connection with applications for and the giving of guarantees under the said section, and other matters arising thereunder, such fees as the Treasury may from time to time prescribe.

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(4) This section shall be construed as one with section one of the Trade Facilities Act, 1921, and that section and this section may be cited together as the Trade Facilities Acts, 1921 and 1922.

Guarantee of  
Austrian  
loan.

2. Whereas with the object of assisting Austria in the work of her economic and financial restoration His Majesty's Government, in conjunction with certain other Governments, has undertaken to guarantee to the extent set out in the Protocol known as Protocol No. II. and signed at Geneva on the fourth day of October, nineteen hundred and twenty-two, and the Annexes thereto, a loan to be raised by the Government of the Federal Republic of Austria (in this Act referred to as "the Austrian Government") of such an amount as after payment of the expenses of issue will produce the equivalent of a sum not exceeding six hundred and fifty million gold crowns :

And whereas it is provided by the said Protocol No. II. that the loan so to be raised by the Austrian Government (in this Act referred to as "the Austrian loan") is to be employed under the authority of a Commissioner-General to be appointed by the Council of the League of Nations, and in accordance with certain obligations undertaken by the Austrian Government as set out in a Protocol known as Protocol No. III. and signed at Geneva on the third day of October nineteen hundred and twenty-two :

And whereas it is provided by the said Protocols that the payment of the amount required in each year to meet the interest on and the sinking fund for the Austrian loan (in this section referred to as "the annual charge") shall be secured by a charge on the gross receipts of the Austrian Customs and of the Austrian Tobacco Monopoly, and the Austrian Government have obtained the necessary powers for securing the said payment by such a charge :

Now, therefore—

(1) The Treasury may guarantee the payment of—

(a) a sum not exceeding the amount of the annual charge in respect of one-fifth of so much of the Austrian loan as is

required to produce the equivalent of a sum not exceeding five hundred and twenty million gold crowns ; A.D. 1922.

(b) a sum not exceeding the amount of the annual charge in respect of one-third of so much of the Austrian loan as is required to produce the equivalent of a sum not exceeding one hundred and thirty million gold crowns ;

(c) the principal of and interest on any short-term securities which may be issued after the commencement of this Act by the Austrian Government with the consent of the said Commissioner-General in anticipation of the raising of the Austrian loan :

- (2) For the purpose of rendering more readily effective any guarantee which may be given by the Treasury in respect of the Austrian loan or of any such securities as aforesaid, the Treasury may, if they think fit, issue for deposit with a person to be agreed upon between the Governments of the several States by whom the Austrian loan is guaranteed securities up to an amount representing, in the case of a guarantee given in respect of the Austrian loan, either the principal of that part of the loan in respect of which the guarantee is given or the liability of the Treasury under the guarantee in respect of the annual charge, and in the case of a guarantee given in respect of any such securities as aforesaid the principal of the securities :
- (3) Any securities so issued in connection with any such guarantee shall be in such form and expressed in terms of such currency as the Treasury think proper, and shall bear interest at the same rate as the interest payable on the loan or securities guaranteed :
- (4) The Treasury may, if the terms on which the Austrian loan is issued provide for the redemption thereof by means of annual drawings, make similar arrangements with respect to

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any securities issued by the Treasury under this section, and may make regulations with respect to the drawing of the securities and for determining the date on which any securities so drawn are to be redeemed.

Guarantee  
of Soudan  
loan.

3.—(1) Subject to the provisions of this section, the Treasury may guarantee, in such manner as they think fit, the payment of the principal of and the interest on any loan raised by the Government of the Soudan for or in connexion with works for the purpose of irrigating the Gezireh Plain (in this Act referred to as “the Soudan loan”), not exceeding in the aggregate an amount sufficient to raise three million five hundred thousand pounds.

(2) A guarantee shall not be given under this section until the Government of the Soudan have provided to the satisfaction of the Treasury and the Secretary of State—

- (a) For raising, appropriating and duly applying the Soudan loan for or in connection with the purpose aforesaid :
- (b) For the establishment and regulation of a sinking fund for the purpose of the repayment of the principal of the Soudan loan or any instalment thereof within a period not exceeding fifty years from the date on which the loan or the instalment is actually raised :
- (c) For charging on the general revenues and assets of the Soudan or on any other revenues or assets which may be made available for the purpose, with priority over any charges not existing at the date of the passing of this Act, the principal of and the interest on the Soudan loan and any sinking fund payments for the repayment of the principal :
- (d) For charging on the general revenues and assets of the Soudan immediately after the last-mentioned charge the repayment to the Treasury of any sum issued out of the Consolidated Fund of the United Kingdom under this Act on account of the guarantee given under this section, with

interest thereon at such rate as the Treasury may fix : A.D. 1922.

- (e) For raising or securing the raising of sufficient money to meet the above charges.

4.—(1) For the purpose of the provisions of the Overseas Trade Acts, 1920 and 1921, relating to the period within which the powers of the Board of Trade with respect to the giving of guarantees in connection with export transactions may be exercised under those Acts, the date on which the Board enter into an agreement to give guarantees shall be deemed to be the date on which the guarantees are given, whether the agreement provides for the giving of guarantees in respect of specific transactions or for the giving of guarantees generally in respect of transactions up to a specified amount.

Period for which guarantees under the Overseas Trade Acts may remain in force.  
 10 & 11  
 Geo. 5. c. 29.  
 11 & 12  
 Geo. 5. c. 26.

(2) This section shall be construed as one with the Overseas Trade Acts, 1920 and 1921, and those Acts and this section may be cited together as the Overseas Trade Acts, 1920 to 1922.

5.—(1) Any sums required by the Treasury for fulfilling a guarantee given under this Act in respect of the Austrian loan or any securities issued by the Austrian Government, or in respect of the Soudan loan, or required by the Treasury for meeting the principal of or the interest on any securities issued by the Treasury under this Act, shall be charged on and issued out of the Consolidated Fund of the United Kingdom or the growing produce thereof, and any sums received by way of repayment of any amount so issued out of the Consolidated Fund shall be paid into the Exchequer.

Charge on the Consolidated Fund of sums required for fulfilling guarantees, and presentation of annual statement to Parliament.

(2) The Treasury shall lay before both Houses of Parliament a statement of any guarantee given under this Act in respect of the Austrian loan, in respect of any securities issued by the Austrian Government, or in respect of the Soudan loan, and of any securities issued by the Treasury under this Act, and an account of any sums issued out of the Consolidated Fund of the United Kingdom for the purpose of any such guarantee or for meeting the principal of or the interest on any securities so issued by the Treasury, in each case as soon as may be after the guarantee is given or the securities or sums are issued.

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Short title.

**6.—(1)** This Act may be cited as the Trade Facilities and Loans Guarantee Act, 1922 (Session 2).

(2) For the purpose of citation the provisions of this Act relating to the Soudan loan shall be deemed to be included among the Acts which may be cited together as the Soudan Loan Acts, 1919 and 1922.

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